

THE GAZETTE OF INDIA
EXTRAORDINARY
PART –III – SECTION 4
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 29th June, 2009
SECURITIES AND EXCHANGE BOARD OF INDIA (PAYMENT OF FEES)
(AMENDMENT) REGULATIONS, 2009

No. LAD-NRO/GN/2009-10/11/167759 - In exercise of the powers conferred by section 30 read with clause (k) of sub-section (2) of section 11 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following Regulations to further amend the Securities and Exchange Board of India (Custodian of Securities) Regulations, 1996, the Securities and Exchange Board of India (Foreign Institutional Investors) Regulations, 1995, the Securities and Exchange Board of India (Foreign Venture Capital Investors) Regulations, 2000, the Securities and Exchange Board of India (Mutual Funds) Regulations, 1996 and the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) Regulations, 1992, namely :-

Short title

1. These regulations may be called the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 2009.

Commencement

2. They shall come into force on July 01, 2009.

Amendment to the Securities and Exchange Board of India (Custodian of Securities) Regulations, 1996.

3. In the Securities and Exchange Board of India (Custodian of Securities) Regulations, 1996, in the Second Schedule, in part A, in clause (iii), for the figure and mark “0.0005%”, the figure and mark “0.00025%” shall be substituted.

Amendment to the Securities and Exchange Board of India (Foreign Institutional Investors) Regulations, 1995.

4. In the Securities and Exchange Board of India (Foreign Institutional Investors) Regulations, 1995, in the Second Schedule, -
 - (i) in clause (1), for the word, mark and figure “US\$ 10,000”, the word, mark and figure “US\$ 5,000” shall be substituted;

- (ii) in clause (2), for the word, mark and figure “US\$ 10,000”, the word, mark and figure “US\$ 5,000” shall be substituted;
- (iii) in clause (2C), for the word, mark and figure “US\$ 2,000”, the word, mark and figure “US\$ 1,000” shall be substituted;
- (iv) in clause (2D), for the word, mark and figure “US\$ 2,000”, the word, mark and figure “US\$ 1,000” shall be substituted.

Amendment to the Securities and Exchange Board of India (Foreign Venture Capital Investors) Regulations, 2000.

5. In the Securities and Exchange Board of India (Foreign Venture Capital Investors) Regulations, 2000, in the Second Schedule, for Part A the following Part shall be substituted, namely:-

“PART A AMOUNT TO BE PAID AS FEES	
Application fee	US\$ 2,500
Registration fee	US\$ 10,000”

Amendment to the Securities and Exchange Board of India (Mutual Funds) Regulations, 1996.

6. In the Securities and Exchange Board of India (Mutual Funds) Regulations, 1996, in the Second Schedule, in item I, in clause D, for the figure “0.005”, the figure “0.0020” shall be substituted.

Amendment to Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) Regulations, 1992.

7. In the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) Regulations, 1992, -
- (i) in the Schedule IIIA, in part B, in item 3, for the table and contents thereof, the following shall be substituted, namely:-

“

Sl. No.	Nature of the securities transaction	Rate of fee
(a)	All sale and purchase transactions in securities other than debt securities.	0.0001 per cent of the price at which the securities are purchased or sold (Rs. 10 per crore)
(b)	All sale and purchase transactions in debt securities.	0.000025 per cent of the price at which the securities are purchased or sold (Rs. 2.5 per crore)

”

- (ii) in Schedule IV, in item 2, –
 - (a) for the words, figure and mark “0.0002 per cent”, the words, figure and mark “0.0001 per cent.” shall be substituted;
 - (b) for the words, figure and mark “(Rs. 20 per crore)” occurring towards the end, the words, figure and mark “(Rs. 10 per crore)” shall be substituted.

(iii)in Schedule IVA, in item 2, -

- (a) for the words, figure and mark “0.0002 per cent”, the words, figure and mark “0.0001 per cent.” shall be substituted;
- (b) for the words, figure and mark “(Rs. 20 per crore)” occurring towards the end, the words, figure and mark “(Rs. 10 per crore)” shall be substituted.

C. B. BHAVE
CHAIRMAN